

proceedings up to the first decision, it did not contain any direct reference to the important issues of dispute raised in the first statement of grounds of appeal and failed to comment upon the other issues of dispute. It thus did not meet the requirements of R. 68(2) EPC 1973.

e) Dealing with issues that go beyond the decision itself

In T. 473/98 (OJ 2001, 231) the board held that it is entirely appropriate and desirable in the interests of overall procedural efficiency and effectiveness that an opposition division should include in the reasons for a revocation decision pursuant to Art. 102(1) EPC 1973 employing the standard decision formula, by way of obiter dicta, findings which could obviate remittal in the event of the revocation being reversed on appeal. By contrast, the board in T. 615/95 decided that an examining division's decision should not normally be supplemented by annexes dealing with issues having no relation to the issues dealt with in the reasons for this decision.

3.5. Decisions according to the state of the file

3.5.1 Request for decision "according to the state of the file"

Applicants may request a decision "according to the state of the file" or based "on the file as it stands" during examination proceedings, e.g. when their arguments have already been sufficiently put forward and they are interested in a speedy appealable decision. In such a case, a decision can be issued by way of a standard form (EPO Form 2061), simply referring to a previous communication (see Guidelines C-V, 15 – March 2022 version).

The Guidelines (C-V, 15.2 – March 2022 version) explain that a standard form referring to a previous communication (EPO Form 2061) can be used only where the previous communication properly identifies the application documents on file, is well reasoned and complete with respect to the grounds and the reasons for refusing the currently pending request and addresses all the arguments raised by the applicant. A further condition is that the applicant has submitted no new arguments or amendments since the previous communication.

According to the boards' case law, a standard form may be used to issue a decision only if all the arguments put forward have already been sufficiently addressed in one or more previous communications and, moreover, no new objections have been raised since those communications were transmitted (T. 1093/13, T. 2364/09).

3.5.2 No absolute right to a decision issued by way of EPO Form 2061

In T. 62/13 the board observed that a decision to refuse based on the file as it stands could be issued either by way of a form (EPO Form 2061) referring to an earlier communication, or alternatively by way of a fully reasoned decision. In T. 1360/05 the board stated that the examining division is not obliged to restrict itself to a decision by reference using the standard form when the necessary reasons in relation to the latest filed claims have not been formulated in any document on file.

3.5.3 No waiver of right to a reasoned decision

A request for a decision on the state of the file thus cannot be construed as a waiver of the right to a fully reasoned first instance decision (T 265/03, T 583/04, T 1182/05, T 1356/05, T 1360/05, T 1309/05 and T 750/06). T 1356/05 goes further and states that even if an applicant were to waive his right to a reasoned first instance decision expressis verbis, it hardly authorises the examining division to dispense with it.

In T 952/07 the board made it clear that the duty to provide reasons in administrative decisions was a fundamental principle in all contracting states, R. 68(2) EPC 1973 simply being an expression of this principle. The losing party must be in a position to understand the reasons for the negative decision taken against it so that it can consider the option of filing an appeal.

In T 2187/17 the impugned decision did not contain any reasons as to why the arguments presented by the appellant were not relevant and it was left to the appellant and to the board to speculate on the reasons for the refusal. It should be noted that a request for a decision based on the current state of the file is not to be understood as a waiver by the party of its right to a fully reasoned decision. The departments of the European Patent Office cannot omit to give reasons for their decisions when the EPC requires them to do so.

3.5.4 Reasons for a decision by way of EPO Form 2061

a) Requirements

In accordance with the boards' case law (e.g. T 278/00 (OJ 2003, 546), T 861/02, T 897/03, T 276/04, T 1182/05, T 1309/05, T 1356/05, T 1360/05, T 1709/06, T 952/07, T 1612/07, T 1442/09, T 177/15 and T 180/10), a standard decision based "on the state of the file" which refers to one or several communications only meets the "reasoned" requirement of R. 68(2) EPC 1973 (now R. 111(2) EPC) if the board of appeal is not left to reconstruct the applicable reasons by piecing together various arguments from the file and if it leaves no doubt as to which claim version the arguments relate to.

In T 963/02 the board held that a decision issued by way of EPO Form 2061 and referring to one or more earlier communications only met the criteria for a reasoned decision if the cited communication itself met those criteria as defined in T 897/03 and T 278/00 (see above), i.e. the reasons for the decision were clear (similarly T 1182/05).

In T 583/04 the board held that the decision by reference using a standard form is appropriate when the communication incorporated by reference contains a fully reasoned exposition of the examining division's objections to the current application text and refutation of any rebuttal by the applicant. This makes it transparent that the decision is being taken on the agreed text and that nothing is being said in the decision which has not already been communicated to the applicant with an opportunity to present comments, thus guaranteeing that the right to be heard is observed (Art. 113 EPC).

In J.18/16 the appealed decision merely referred to a preceding communication on deficiencies in the application, and the section of the form headed "Further comments on the remaining deficiency" gave no information on why the Receiving Section had considered the subsequently filed documents not to have corrected the deficiencies noted or to what extent those documents made amendments going beyond what would have been sufficient to correct them, thereby infringing R. 58, second sentence, EPC. That, the board held, breached R. 111(2) EPC. The board remitted the case to the department of first instance on account of a substantial procedural violation.

In T.353/11 the decision under appeal referred solely to a communication annexed to a summons to attend oral proceedings. The communication did no more than to identify the closest prior art and the distinguishing feature of the invention, indicate that it was "not clear" whether the examples of the application illustrated the distinguishing feature of the invention, state it would be examined whether or not the process was inventive, and invite the appellant to file a comparative example. It neither gave an explicit conclusion with respect to inventive step, nor any reasons as to why the claimed process was not inventive. Thus, the examining division did not issue a reasoned decision within the meaning of R. 111(2) EPC.

The board in T.1998/10 held that the use of the standard form could be considered appropriate for decisions on the state of the file in exceptionally plain cases. In the case at hand, the decision under appeal referred to a communication of the examining division, which in turn referred to the Written Opinion of the ISA. Although the board in would have preferred an independently, fully-reasoned, self-contained decision, it concluded that the objections leading to the refusal could be identified and understood from the references in an unambiguous manner and without undue guesswork.

b) Reference to more than one communication

The Guidelines (C-V, 15.2 – March 2022 version) state that reference can be made to more than one communication only in exceptional cases and that, especially if the various communications deal with different sets of claims and it is therefore unclear which of the reasons given in them by the examining division might be essential to its decision to refuse, a fully reasoned decision should be issued instead.

In T.897/03 the board held that a decision that leaves it to the appeal board and the appellant to speculate as to which of the reasons given by the examining division in different communications might have been decisive for the refusal of the application, could not be considered to meet the requirements of R. 68(2) EPC 1973 (see also T.177/15, T.652/97 and T.278/00, OJ 2003, 546).

In T.180/10 two communications had been referred to. However, contrary to what was stated in the second communication ("the applicant's explanations ... have been carefully considered"), it was apparent that the examining division had ignored all the appellant's arguments since this communication and, therefore, the decision were silent on them. The requirements of R. 68(2) EPC 1973 were not fulfilled.

In T.737/11 the board concluded that considerable uncertainty existed as to the precise reasons on which the contested decision was based. The claims were amended substantially between the two communications to which the written reasoning of the contested decision referred. Furthermore, oral proceedings had taken place in absence of the applicant, despite the applicant withdrawing the respective request and the minutes of these oral proceedings were not mentioned in the decision. This was held to amount to a substantial procedural violation and insufficient reasoning. In both T.406/15 and T.62/13 the examining division had refused an application based on the file as it stood, using a form referring to two earlier "communications". However, the file in each case revealed that these had not been "communications" as such. The examining division had issued only one formal communication that raised just one briefly reasoned objection to lack of novelty and did not clearly explain why the application had been refused. The board nevertheless held that it was just enough to fulfil the obligation to substantiate decisions, but only having taken into account that the appellants themselves had not argued on appeal that the reasoning was insufficient.

In T.1946/17 the board held that a blanket statement like "arguments were carefully considered" but "no new evidence" was provided, in the communications to which the decision refers cannot be considered to address the arguments raised and thus constitutes insufficient reasoning.

3.5.5 Documents included in the "state of the file"

The "state of the file" is not restricted to those documents on file which were issued by the EPO, but also includes all those documents and arguments which were filed by the applicant prior to (or even simultaneously with) his request for a decision "on the status of the file" (T.265/03, T.1360/05). It does not include the note of a telephone conversation (T.583/04). This was the summary record of a conversation. Whereas the phone call note is a record of a dialogue, a communication under Art. 96(2) EPC 1973 constitutes a unilateral legal notice to a party. This does not exclude the possibility of the statements made orally by phone being confirmed and adopted in a formal communication from the examining division inviting observations with a term set for reply. See also T.750/06. In T.1356/05 the board held that minutes of oral proceedings are most probably not meant to be included in the term "previous communications" and it is thus not appropriate to refer to them in the standard decision.

4. Loss of rights within the meaning of Rule 112(1) EPC

If a party to the proceedings or a third party fails to comply with a time limit laid down in the EPC or fixed by the EPO, this will result in a loss of rights in certain cases specified in the EPC. Pursuant to R.112(1) EPC (formerly R.69(1) EPC 1973), if the EPO notes that such a loss of any rights results from the EPC, it must communicate this to the party concerned. If the party disagrees with the finding of the EPO it may apply for a decision on the matter by the EPO (R.112(2) EPC, formerly R.69(2) EPC 1973) or it may request further processing or re-establishment of rights, as the case may be (J.14/94, OJ 1995, 824). By decision of the President of the EPO dated 12 December 2013 (OJ 2014, A6), responsibility for issuing the communication within the meaning of

R. 112(1) EPC was entrusted to formalities officers working for the examining and opposition divisions.

4.1. Purpose of notification of loss of rights under Rule 112(1) EPC

In J 7/92 the board stated that the purpose of a notification under R. 69(1) EPC 1973 is not to give an applicant a chance to take at least remedial action by way of a request for re-establishment of rights. As stated by the Enlarged Board in its opinion G 1/90 (OJ 1991, 275), when, according to the EPC the European patent application shall be deemed to be withdrawn, the applicant must be "informed" of the loss of rights (R. 69(1) EPC 1973). According to R. 69(2) EPC 1973 he may then, within two months of notification of the communication, apply for a decision "if he considers that the finding of the EPO is inaccurate". Although it is the customary practice of the EPO to send renewal fee reminders, it is in no way compelled to issue such communications. By communicating such information, the EPO provides only a voluntary service from which no rights can be derived (following J 12/84 (OJ 1985, 108)). The EPC 1973 did not provide that the EPO should note the loss of rights mentioned in R. 69(1) EPC 1973 within a certain period. Nor did it provide any period of time for the ensuing communication. However, when incoming requests or documents contained clear deficiencies which were obviously easy to correct and could be expected to be remedied within the time limit to avoid a loss of rights, then the principles of good faith might require the EPO to draw attention to such deficiencies (on the principle of the protection of legitimate expectations see chapter III.A.).

4.2. Form of notification of loss of rights under Rule 112(1) EPC

The board in J 43/92 noted that R. 69(1) EPC 1973 did not prescribe any particular form for the communications provided therein, distinguishing them from other communications or notifications under the EPC. A reference to a time limit to apply for a decision was not necessarily decisive as to the true nature of the communication. Whether a document constituted a communication pursuant to R. 69(1) EPC 1973 should be derived from its substantive content and its context (see also J 8/81, T 713/02, J 24/01).

4.3. Request for a decision under Rule 112(2) EPC subsequent to a communication

If the party concerned considers that the finding of the EPO is inaccurate, it may, within two months of notification of the communication, apply for a decision on the matter. In J 43/92 the board noted that a decision pursuant to R. 112(2) EPC could be applied for only if it was preceded by a communication under R. 112(1) EPC. Otherwise, there was no basis for the EPO to issue such a decision.

4.4. Responsibility for issuing decisions under Rule 112(2) EPC

By decision of the President of the EPO dated 12 December 2013 (OJ 2014, A6), responsibility for issuing communications and decisions within the meaning of R. 112(2) EPC was transferred to formalities officers working for the examination and opposition divisions.